

Umesh Chandra Verma v. U.P. Power Corporation Ltd. and 3 Others

Allahabad High Court · Single Judge · 11 March 2024 · 2024:AHC:44451 · WRIT - A No. 17877 of 2023 · **Writ allowed; Chairman's punishment of 18.05.2022 and Board appeal of 14.11.2022 quashed; liberty to proceed de novo from the charge-sheet if rules permit against a retired officer, with no higher punishment; no costs**

HEADNOTE

A major penalty imposed on a UPPCL Executive Engineer is vitiated where the establishment examined no witnesses and the Inquiry Committee treated the charge-sheet and annexed documents as self-proving. In a major-penalty inquiry the committee must sit as an impartial arbiter; the establishment must first prove the charges by documentary and oral evidence through a Presenting Officer, with witnesses offered for cross-examination, and the delinquent then given opportunity to lead his own evidence. That the delinquent did not dispute genuineness of documents, or that no witness was named in the charge-sheet (Regulation 7(7) of the UPPCL Employees (Discipline and Appeal) Regulations, 2020), does not relieve that burden when the charges and evidence were denied. The Chairman's order of 18.05.2022 (reduction by one step permanently in basic pay plus censure) and the Board's appellate order of 14.11.2022 are quashed, with liberty to restart from the charge-sheet if the rules permit continuation against a retired officer, a three-month outer limit if they elect to do so, and a cap that no higher punishment may be awarded. The Court did not decide the merits of the charges, whether that penalty is enumerated in Regulation 3, or the consumer's unauthorised-use assessment.

FACTUAL SUMMARY

Umesh Chandra Verma, then Executive Engineer, Electricity Distribution Division-II, Aligarh, sanctioned enhancement of a 55 kW connection of M/s Varuna Trauma and Burn Centre (Dr. Sanjay Bhargava) at Quarsi Chauraha, Aligarh, to 120 kW so a later-built second block across a lane could be energised. The first block had been connected under the U.P. Electricity Supply Code, 2005. After a technical feasibility report dated 04.11.2016 and deposit of Rs. 5,87,345, the load was enhanced and a completion certificate issued.

On 08.11.2021 a Corporation vigilance team found unauthorised use; additional revenue of about Rs. 2.03 crore was assessed. Verma was charge-sheeted on 18.12.2021 for not cancelling an earlier sanction, enhancing load to a building across the road contrary to departmental rules, and collusion. The Inquiry Committee found him partly guilty on all three charges without examining witnesses. The Chairman on 18.05.2022 awarded reduction by one step permanently in basic pay plus a censure; the Board dismissed his appeal on 14.11.2022. He had since retired.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::service-law-natural-justice

Major-penalty inquiry — establishment must prove charges by oral and documentary evidence

QUESTION

Can a major penalty stand where the Inquiry Committee found guilt from the charge-sheet and reply without the establishment examining any witness or formally proving the documents?

HOLDING

No. The Court confined itself to fairness of procedure and the type of punishment, not the merits of the charges. The parties agreed that reduction by one step permanently in basic pay is a major penalty. In such an inquiry the committee must distance itself from the establishment; the establishment must first prove the charges by documentary and oral evidence through a Presenting Officer, witnesses must face cross-examination, and the delinquent must then be allowed to lead his own evidence. Here no witness was examined. The Committee gleaned the charge-sheet and reply and treated the documents as proved, as if at a preliminary inquiry. A plea that the petitioner had not disputed genuineness, and Regulation 7(7) (no named witness, so none need be produced), was rejected: the charges and cited documents were denied, and there

was no endorsement of admission. The respondents' own later OM of 14.08.2023 directing officers to examine establishment witnesses first was treated as an acknowledgment of that principle. Punishment and appeal quashed; de novo from the charge-sheet if rules permit against a retired officer, to be concluded within three months if elected; no higher punishment. ¶ 7-13, 16-18

QUALIFIER

Liberty to restart is conditional on the rules permitting continuation against a retired officer, and is capped at the punishment already awarded.

FLAG Off-topic for the Supply Code. The 2005 Code appears only as the backdrop of the original 55 kW connection and load enhancement; no Code clause is construed. Same judge and authorities as SCJ-017. Source PDF also contains listing orders of 01.11.2023 (notice; petitioner cited Union of India v. S.C. Parashar on amalgam of minor and major penalties) and 20.11.2023 (admit; reserved); the judgment under record is 11.03.2024 (2024:AHC:44451).

PRINCIPLE TAGS

natural-justice-in-departmental-inquiry In a major-penalty inquiry charges are not self-proving. The establishment must lead documentary and oral evidence through a Presenting Officer before an impartial inquiry committee; want of named witnesses in the charge-sheet, or a plea that documents were not disputed as to genuineness, does not relieve that burden when the delinquent has denied the charges. Lead authorities: *State of Uttar Pradesh v. Saroj Kumar Sinha* [1064026], *Roop Singh Negi v. Punjab National Bank* [1106974], *State of Uttaranchal v. Kharak Singh* [1693089]. ¶ 12-13

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THREE DISCIPLINARY CHARGES (INCLUDING WHETHER ENHANCING LOAD FROM BUILDING A TO BUILDING B ACROSS THE ROAD WAS UNAUTHORISED USE)
Expressly not gone into; confined to validity and fairness of procedure. Fresh inquiry left open. ¶ 7, 18

NOT DECIDED — WHETHER REDUCTION BY ONE STEP PERMANENTLY IN PRESENT BASIC PAY IS A PENALTY ENUMERATED IN REGULATION 3 OF THE UPPCL EMPLOYEES (DISCIPLINE AND APPEAL) REGULATIONS, 2020
Raised; not decided with conviction. On remand the respondents are to look into whether it is an enumerated punishment; if not, it cannot be awarded. ¶ 9, 14-15

NOT DECIDED — WHETHER DEPARTMENTAL PROCEEDINGS COMMENCED BEFORE RETIREMENT MAY BE CONTINUED AGAINST A RETIRED OFFICER
Liberty to proceed afresh is expressly subject to the rules applicable to the Corporation. ¶ 16-18

NOT DECIDED — CORRECTNESS OF THE CONSUMER'S UNAUTHORISED-USE FINDING AND THE RS. 2.03 CRORE ADDITIONAL-REVENUE ASSESSMENT OF 08.11.2021
Narrative backdrop of Charge 3 only; not adjudicated. ¶ 3, 7

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>State of Uttar Pradesh v. Saroj Kumar Sinha</i> (2010) 2 SCC 772 [1064026] Supreme Court	Cited for the settled principle that in a departmental inquiry the establishment must prove the charges by leading evidence; the inquiry officer is not to treat the charge-sheet as self-proving.		Court	Relied on
<i>Roop Singh Negi v. Punjab National Bank</i> (2009) 2 SCC 570 [1106974] Supreme Court	Cited with Saroj Kumar Sinha and Kharak Singh for the establishment's obligation to prove charges by legal evidence in a departmental inquiry.		Court	Relied on
<i>State of Uttaranchal v. Kharak Singh</i> (2008) 8 SCC 236 [1693089] Supreme Court	Cited for natural justice in disciplinary inquiries: evidence must be led and the delinquent given opportunity to meet it.		Court	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>State of U.P. v. Kishori Lal</i> 2018 (9) ADJ 397 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on the establishment's burden in a departmental inquiry; no separate holding extracted.		Court	Referred
<i>Smt. Karuna Jaiswal v. State of U.P.</i> 2018 (9) ADJ 107 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on natural justice in disciplinary inquiries; no separate holding extracted.		Court	Referred
<i>State of U.P. v. Aditya Prasad Srivastava</i> 2017 (2) ADJ 554 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on proof of charges in a departmental inquiry; no separate holding extracted.		Court	Referred
<i>Union of India v. S.C. Parashar</i> (2006) 3 SCC 167 Supreme Court	Cited by the petitioner on 01.11.2023: an amalgam of minor and major penalties is contrary to the principle in Parashar. The reserved judgment did not apply or decide that point.		Petitioner	Referred